no difference. What is relevant is the association of the accused with the said five persons and not their names.'

In his Statement of the Accused (which, unlike the confession, is made in court and not police custody) Afzal says: 'I had not identified any terrorist. Police told me the names of terrorists and forced me to identify them.'[16] But by then it was too late for him. On the first day of the trial, the lawyer appointed by the trial court judge agreed to accept Afzal's identification of the bodies (and the postmortem reports) as *undisputed evidence*, without *formal proof*!. This baffling move was to have serious consequences for Afzal. To quote from the Supreme Court judgement, 'The first circumstance against the accused Afzal is that Afzal knew who the deceased terrorists were. He identified the dead bodies of the deceased terrorists. On this aspect the evidence remains unshattered.'

Of course, it's possible that the dead terrorists were foreign militants. But it is just as possible that they were not. Killing people and falsely identifying them as 'foreign terrorists', or falsely identifying dead people as 'foreign terrorists', or falsely identifying living people as terrorists, is not uncommon among the police or security forces in Kashmir, or even on the streets of Delhi.

The best known among the many well-documented cases in Kashmir, one that went on to become an international scandal, is the killing that took place outside a village called Pathribal, after the Chhittisingpora massacre. On the night of 20 April 2000, just before the US President Bill Clinton arrived in New Delhi, thirty-five Sikhs were killed in the village of Chhittisingpora, by 'unidentified gunmen' wearing Indian Army uniforms. (In Kashmir many people suspect that Indian security forces were behind the massacre.) Five days later, the SOG and the 7th Rashtriya Rifles, a Counter Insurgency unit of the Army, killed five people in a joint operation in Pathribal. The next morning they announced that the men were the Pakistan- based foreign militants who had killed the Sikhs in Chhittisingpora. The bodies were found burned and disfigured. Under their (unburned) Army uniforms, they were in ordinary civilian clothes. It turned out that they were all local people, rounded up from Anantnag district and brutally killed in cold blood.

There are others:

On 20 October 2003 the Srinagar newspaper *Al- safa* printed a picture of a Pakistani 'militant' who the 18th Rashtriya Rifles claimed they had killed while he was trying to storm an army camp. A baker in Kupwara, Wali Khan,